United Nations A/HRC/WG.6/53/TTO/3

General Assembly

Distr.: General
10 August 2026

Original: English

Human Rights Council
Working Group on the Universal Periodic Review
Fifty-third session
Geneva, 2–13 November 2026

Summary of stakeholders' submissions on Trinidad and Tobago*

Report of the Office of the United Nations High Commissioner for Human Rights

I. Background

1. The present report was prepared pursuant to Human Rights Council resolutions 5/1 and 16/21, taking into consideration the periodicity of the universal periodic review and the outcome of the previous review.[1] It is a summary of 13 stakeholders' submissions[2] for the universal periodic review, presented in a summarized manner owing to word-limit constraints.

II. Information provided by stakeholders

A. Scope of international obligations and cooperation with human rights mechanisms

2. JS2 reported that Trinidad and Tobago had not ratified the Second Optional Protocol to the International Covenant on Civil and Political Rights and had noted all related recommendations during its previous UPR cycle, with no progress towards abolition of the death penalty. They recommended ratifying the Protocol.[3]

3. Just Atonement Inc. recommended ratifying the ILO Indigenous and Tribal Peoples Convention, 1989 (No. 169).[4]

B. National human rights framework

1. Constitutional and legislative framework

4. JS4 expressed concern at the recurrent use of State of Emergency declaration to address crime, noting expanded powers of search, seizure and detention, including suspension of bail rights. It observed that, between 2024 and March 2026, State of Emergency had been repeatedly in effect, with the most recent remaining in force. While recognizing that certain rights were non-derogable, JS4 cautioned against reliance on emergency measures as a long-term crime-control strategy. It recommended comprehensive

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training for police recruits and serving officers, enforcement of body-camera use, strengthening personnel in units responsible for home invasions, and adopting workable crime-prevention plans instead of continued reliance on States of Emergency, which it stated were not yielding results. JS4 also called for legislation governing police use of force, amendments to the Criminal Law Act to ensure compliance with minimum international standards, especially on firearms, increased resources for the Office of the Director of Public Prosecutions to enable timely and effective court proceedings, greater scrutiny of the judiciary in view of the breadth of its powers, and the use of remand as an exception rather than the rule through greater reliance on non-custodial measures to reduce the prison population.[5]

2. Institutional infrastructure and policy measures

5. Quantum Foundation (QuFo), JS4 and JS5 highlighted the continued absence of an independent National Human Rights Institution (NHRI) compliant with the Paris Principles, despite commitments made in earlier UPR cycles. They recommended establishing such an institution.[6] JS4 also recommended a multi-stakeholder establishment process, dedicated funding and the use of regional and international good practices.[7] JS5 expressed concern at the resulting gaps in oversight and remedies, particularly for LGBTIQ+ persons, and recommended strengthening independent oversight mechanisms and providing compulsory, continuous human rights and SOGIESC-inclusive training for law enforcement officials, judiciary, healthcare workers, teachers, and other public officials.[8]

6. QuFo reported serious concerns regarding the prolonged use of State of Emergency declarations since 2024, granting expanded police and military powers with limited judicial oversight. It noted high levels of remand detention, including prolonged pretrial detention amounting to a de facto punishment, reports of preventive detention without effective safeguards, and the use of non-transparent detention facilities operating below international standards, including the Nelson Mandela Rules. QuFo recommended eliminating non-transparent detention facilities, strengthening judicial oversight of emergency powers, and aligning detention practices with international human rights standards.[9]

7. QuFo reported systemic governance failures, including ineffective oversight of intelligence agencies, persistent political corruption and prolonged impunity for high-level officials, and expressed concern that these contributed to democratic backsliding, the normalization of emergency governance and international due-diligence risks. It recommended strengthening oversight of intelligence agencies and addressing political corruption and accountability gaps.[10]

C. Promotion and protection of human rights

1. Implementation of international human rights obligations, taking into account applicable international humanitarian law

Equality and non-discrimination

8. JS5 reported that Trinidad and Tobago continued to criminalize consensual same-sex sexual activity between adult men under the Sexual Offences Act, following the 2025 Court of Appeal decision criminalizing same-sex sexual relations between adults that overturned the 2018 High Court ruling on whether sections 13 and 16 of the Sexual Offences Act Chap. 11:28 (“the Act”) are unconstitutional. It recalled that, in response to advanced questions during the previous cycle, the Government had stated that the Constitution was “absolutely clear that no discrimination was tolerated in society,” while maintaining that the question of whether sexual orientation should be recognized as a protected ground, rested with the Privy Council. JS5 noted that although the Court reinstating Sections 13 and 16, there was no evidence that law enforcement or the criminal justice system is actively enforcing the law, nevertheless they expressed concern that the absence of a de jure moratorium on enforcement of such Act, as arresting and charging individuals suspected of engaging in consensual same-sex sexual activity with another adult man remained at the discretion of police and/or criminal justice systems actors. They were also concerned of the lack of legal gender recognition, the

continued exclusion of same-sex couples from protections relating to marriage, property, immigration and domestic violence, and the failure to include sexual orientation and gender identity in the Equal Opportunity Act. JS5 recommended repealing the relevant criminal provisions; adopting, in the meantime, a moratorium on enforcement; amending the Equal Opportunity Act; reforming marriage, property and immigration laws to ensure equality; and adopting legislation on legal gender recognition.[11]

Right to life, liberty and security of person, and freedom from torture

9. JS2 reported that the death penalty had not been abolished and that no official moratorium on executions was in place, noting that courts had continued to impose death sentences. It also observed that all thirteen recommendations relating to the death penalty, including ratification of the Second Optional Protocol to the International Covenant on Civil and Political Rights, aiming at the abolition of the death penalty, had been noted. JS2 stated that domestic law retained the mandatory death penalty for murder and treason and that 48 individuals were under sentence of death as of 2026. JS2 highlighted concerns about the mandatory nature of the death penalty, which precluded individualized sentencing and the consideration of mitigating circumstances. It noted judicial developments confirming that abolition of the death penalty, or reform of its mandatory application, fell within the competence of Parliament, notwithstanding constitutional protections against cruel and inhuman punishment. JS2 recommended abolishing the death penalty; establishing an immediate and formal moratorium on the imposition of death sentences; removing the mandatory nature of the death penalty to allow for individualized sentencing; commuting all pending death sentences to terms of imprisonment; and replacing the death penalty with penalties that are fair, proportionate and consistent with international human rights standards.[12]

10. JS2 raised concerns about harsh detention conditions for persons under death sentence and others in custody, including overcrowding, inadequate sanitation, poor ventilation, inadequate lighting, and limited access to healthcare. It noted that, during the third-cycle UPR, Trinidad and Tobago supported one recommendation to improve prisoner treatment in line with the Nelson Mandela Rules, while noting seven others concerning detention conditions, including the rights of detainees, overcrowding, and security classification. JS2 reported that harsh conditions persisted, most prison infrastructure projects remained unfinished despite significant public expenditure, and prolonged pretrial detention affected a large proportion of detainees. It recommended expediting independent investigations into alleged abuse by detention authorities and strengthening investigators' powers to process crime scenes and collect evidence; allowing independent monitoring; adopting comprehensive policies to guarantee detainees' rights and eliminate overcrowding; reviewing and updating the Miscellaneous Provisions (Prisons) Act, 2014, and operationalizing the national budget and other sectoral mechanisms to improve material conditions; and minimizing the use of remand detention, including through training and expanded judicial discretion to reduce bail terms and amounts for persons accused of petty offences.[13]

11. The Center for Global Nonkilling expressed concern that suicide remained criminalized in Trinidad and Tobago, where attempted suicide constituted a summary offence under domestic law. It reported suicide rates higher than global averages and stressed that criminalization contributed to stigma, underreporting and barriers to mental health care. Referring to international human rights standards, WHO guidance and recent Human Rights Council resolutions advocating for non-coercive mental health measures, CGN encouraged Trinidad and Tobago to shift from coercion to prevention. It recommended changing the law to decriminalize suicide to strengthen prevention, improve data collection, reduce stigma and better protect the right to life.[14]

Administration of justice, including impunity, and the rule of law

12. JS4 raised concerns regarding crime victims' access to justice, citing low detection rates, delays in investigations and prosecutions, and limited public confidence in law enforcement and prosecutorial institutions. It reported that gender-based violence, including domestic violence, rape and femicide, remained widespread, and recommended enhanced police training on gender-based violence.[15]

Fundamental freedoms

13. Humanists of Trinidad & Tobago (HTT) reported concerns regarding restrictions on freedom of religion or belief and freedom of expression affecting non-religious and minority belief communities in Trinidad and Tobago. It highlighted the continued existence of blasphemy-related legal provisions, compulsory religious observances and oaths in public schools without a formal, publicized and non-punitive opt-out mechanism, and broader manifestations of State endorsement of religious belief in public life, including constitutional references and unequal treatment of belief communities. HTT also raised concerns that limitations on who may officiate marriages and differential access to public resources for religious as opposed to non-religious organizations affected the equal participation of non-religious persons in public and civic life. It recommended repealing blasphemy-related laws, removing compulsory religious oaths or prayers in government-funded public schools or introducing an effective opt-out mechanism, ensuring State neutrality by removing religious references from the Constitution, allowing non-religious belief communities to officiate marriages on an equal basis, and ensuring equal access to public resources for religious and non-religious groups.[16]

Right to marriage and family life

14. ICAAD expressed concern regarding gaps in family-related protections affecting women, particularly in relation to parenthood and employment. It noted shortcomings in maternity protection frameworks, including the risk of dismissal during pregnancy. ICAAD recommended amending the Maternity Protection Act to explicitly prohibit the dismissal of pregnant workers and to strengthen protections supporting women's economic security and work–family balance.[17]

Prohibition of all forms of slavery, including trafficking in persons

15. The European Centre for Law and Justice reported that human trafficking remained a persistent concern in Trinidad and Tobago, particularly involving women and girls trafficked for sexual exploitation and domestic servitude. It noted recent efforts by the State to strengthen its response, in accordance with its Trafficking in Persons Act art. 4, including the adoption of a National Plan of Action, enhanced victim identification and awareness-raising initiatives, the establishment of specialized support units and shelters, and an increase in investigations and victim identification. While welcoming these measures and the first conviction secured under the Trafficking in Persons Act, ECLJ expressed concern about low prosecution and conviction rates. It previously urged the government in its last report to implement procedures and allocate resources to combat human trafficking and recommended further strengthening investigative and prosecutorial capacity to ensure accountability for traffickers.[18]

Right to work and to just and favourable conditions of work

16. JS1 reported that the deployment of third-country medical mission healthcare workers was governed by opaque state-to-state agreements since 2003 that were not publicly accessible and reportedly subject to confidentiality clauses. They examined the situation of the healthcare workers deployed in Trinidad and Tobago and raised concerns regarding compliance with international human rights and labour standards, including risks of forced labour and human trafficking. JS1 stated that workers were required to sign parallel contracts with medical mission third-country authorities obliging them to remit part of their remuneration and comply with the rules governing conduct, mobility, and private life. JS1 recommended direct and individual employment relationships under domestic law.[19] JS1 also raised concerns regarding extensive restrictions on their civil and political rights through disciplinary regulations, as well as criminal sanctions for abandoning a mission. JS1 urged the host State to prevent coercion or retaliation and to ensure safe, confidential complaint mechanisms and access to effective remedies.[20]

17. According to JS1, third-country medical mission healthcare workers were paid by the host State but were reportedly required to transfer up to half of their salaries to third-country authorities. Alleged concerns included lack of access to bonuses, salary monitoring, inaccurate tax assessments, and inadequate or overcrowded housing. JS1 called on Trinidad

and Tobago to ensure full and direct payment of wages, equal treatment with local workers, access to social security, and effective labour inspection and monitoring mechanisms.[21]

18. JS1 stated that elements of the medical mission scheme could amount to forced labour and human trafficking under international law. Indicators cited included lack of voluntariness, wage withholding, surveillance, and threats of criminal penalties affecting workers and their families. JS1 maintained that Trinidad and Tobago could incur responsibility if it knowingly facilitated or tolerated such practices and urged strengthening prevention measures and providing protection and remedies to affected workers.[22]

Right to health

19. JS5 reported that, while recommendations on HIV/AIDS had been accepted, prevention measures remained insufficient, particularly for key populations, and access to pre-exposure prophylaxis (PrEP) and doxycycline prophylaxis (Doxy-PEP) and other preventive tools was limited. JS5 also noted the absence of legal protection for intersex children against non-medically necessary interventions without informed consent and raised concerns about stigma and gaps in sexuality education. JS5 recommended expanding access to HIV and STI prevention, testing, treatment, and psychosocial support, strengthening inclusive public education efforts, and adopting legislation prohibiting non-consensual and non-medically necessary interventions on intersex minors.[23]

20. Christian Council International reported progress in reducing maternal, neonatal and infant mortality and noted universal skilled birth attendance, while expressing concern about persistent adolescent pregnancy and vulnerabilities affecting young mothers. It recommended strengthening maternal health services for adolescent and vulnerable mothers.[24]

Right to education

21. Christian Council International acknowledged free and compulsory education and high literacy rates, while expressing concern about learning gaps, school dropout linked to adolescent pregnancy and educational disruption due to period poverty. It recommended expanding support for pregnant students and adolescent mothers and continued measures to address period poverty.[25]

Development, the environment

22. Just Atonement Inc. reported that Trinidad and Tobago had ratified key international human rights and climate agreements, but that the lack of domestic incorporation limited their enforceability. It noted that individuals could not directly invoke the right to a clean, healthy and sustainable environment or other climate-related human rights before national courts and expressed concern about Trinidad and Tobago's withdrawal from key regional human rights mechanisms. JAI recommended domestically codifying international human rights obligations, particularly in the context of climate change, including the right to a healthy environment, strengthening legal protection of climate affected rights, and reconsidering engagement with regional human rights systems.[26]

23. Just Atonement Inc. reported that Trinidad and Tobago was particularly vulnerable to the adverse effects of climate change which was already undermining the enjoyment of rights to self-determination, health, housing, food, water and an adequate standard of living, with disproportionate effects on coastal communities, Indigenous Peoples, children, older persons and persons with disabilities. It noted very high per capita emissions linked to fossil fuel dependence despite an extensive policy framework. While acknowledging mitigation and adaptation efforts, implementation remained constrained by limited technical capacity, weak institutional coordination, and financing barriers compounded by high national debt burdens. JAI highlighted implementation gaps, capacity and financing constraints, and insufficient protection against climate induced displacement. JAI recommended scaling up mitigation measures, supporting a just transition that protects workers, adopting human rights based disaster risk management legislation, integrating the UN Guiding Principles on Internal Displacement into domestic law, developing planned relocation frameworks, fully implementing the Escazú Agreement, and strengthening protection of Indigenous Peoples'

rights to non-discrimination and self-determination, and establish assistance programmes to allow their right to environmental protection and to the conservation of their lands or territories and resources.[27]

24. JS6 reported concerns regarding the institutional independence and effectiveness of Trinidad and Tobago's environmental governance framework, particularly the Environmental Management Authority (EMA) and the Environmental Commission. JS6 noted that the EMA's institutional subordination to a ministry responsible for economic development, discretionary ministerial control overboard appointments, limited transparency, and demonstrated prioritization of energy-sector interests undermined its ability to function as an independent environmental regulator. JS6 further expressed concern about potential political pressure on the Environmental Commission and proposals that could reduce its jurisdiction over environmental appeals. JS6 recommended legislative and institutional reforms by amending the Environmental Management Act to strengthen the EMA's independence, protect the jurisdiction of the Environmental Commission, enhance transparency, and ensure effective public oversight of environmental decision-making.[28]

25. JS6 acknowledged the existence of a formal legal framework governing access to environmental information, public participation in environmental decision-making, and access to justice, including following Trinidad and Tobago's accession to the Escazú Agreement. However, JS6 stated that these mechanisms remained largely ineffective in practice due to reliance on reactive information-request procedures, broad confidentiality exemptions, limited public participation opportunities within the environmental permitting process, high costs and procedural barriers to litigation, and the absence of specific protection for environmental human rights defenders. JS6 recommended adopting mandatory proactive disclosure obligations, strengthening public participation standards in environmental permitting procedures, reducing barriers to access to justice through legal aid and procedural reforms, and enacting legal protections for environmental defenders.[29]

26. JS6 noted that, despite Trinidad and Tobago's support for international recognition of the right to a clean, healthy and sustainable environment and its accession to the Escazú Agreement, this right had not been recognized in domestic law. JS6 expressed concern that the absence of constitutional or legislative recognition limited enforceable remedies for communities disproportionately affected by environmental harm and rendered environmental policy commitments non-justiciable. JS6 recommended initiating constitutional and/or legislative reforms to formally recognize and give domestic legal effect to the right to a clean, healthy and sustainable environment, ensuring that it was enforceable by individuals and communities.[30]

2. Rights of specific persons or groups

Women

27. JS2 noted that in its third-cycle UPR, Trinidad and Tobago supported several recommendations to combat gender-based violence, including recommendations to improve implementation and enforcement of legislation and policies to reduce gender-based violence, as well as stronger measures to prevent and respond to sexual and gender-based violence. It also reported that in 2023, the Cabinet approved a National Strategic Action Plan on Gender-Based Violence and Sexual Violence (NSAP-GBV & SV 2023-2027) (the GBV Plan) among other measures. Notwithstanding these initiatives, they reported that gender-based violence rates remained high and state protection and accountability mechanisms are often ineffective. In November 2024, the Inter-American Commission on Human Rights urged Trinidad and Tobago to adopt urgent measures to prevent and eradicate gender-based violence, particularly in family and intimate-partner contexts, citing reports of domestic-violence-related killings and referencing official data on domestic violence, sexual abuse, breaches of protection orders, and very low charging outcomes.[31]

28. ICAAD reported that gender-based violence remained pervasive in Trinidad and Tobago despite legal and policy reforms following the third UPR cycle. It noted high prevalence rates, persistent underreporting and limited trust in protection mechanisms. ICAAD observed continuing barriers for victims in accessing effective remedies. ICAAD acknowledged State initiatives to address GBV, including the National Strategic Action Plan

on Gender-Based Violence and Sexual Violence, legislative amendments, specialized courts, judicial training programmes and dedicated police units. It further noted that the judiciary had introduced the Gender Equality Protocol for Judicial Officers, applying a gender lens to cases of sexual violence, domestic violence and human trafficking. Nevertheless, ICAAD identified significant gaps in justice sector service delivery. These included deficiencies in data collection, court efficiency, survivor-centred approaches, enforcement of protection orders and accountability mechanisms. It also reported weak coordination across government, the judiciary and law enforcement, delays in prosecutions and uneven implementation of reforms. ICAAD recommended enhancing training for all GBV stakeholders. It called for stronger implementation and oversight of existing frameworks through supervisory and accountability mechanisms under the Domestic Violence Act. It further recommended improving justice sector coordination, enacting comprehensive sexual harassment legislation, amending the Offences Against the Person Act to address emerging forms of violence such as technology-facilitated abuse, and increasing public awareness of available protection mechanisms and victim support services.[32]

29. JS2 emphasized that women were particularly vulnerable under the mandatory death penalty regime, as courts were barred from considering histories of gender-based violence or coercive control as mitigating factors. It further reported inadequate detention conditions for women, including lack of reliable access to dignified sanitation and hygiene supplies, including menstrual products.[33] JS2 recommended adopting legislative and judicial reforms to ensure that in any criminal legal proceeding, the court may admit and give adequate weight to evidence of prolonged gender-based violence and coercive control as mitigating circumstances, particularly when a woman is charged with an offense that could result in a sentence of death or life imprisonment and ensure that women in detention, including women serving life sentences or on death row, have reliable access to dignified sanitation and adequate hygiene supplies (including menstrual products), consistent with the Bangkok Rules.[34]

30. ICAAD reported progress in women's representation within government, parliament, the judiciary and law enforcement, including increased participation in local government, strong representation of women judges, and the appointment of the first female Commissioner of Police. It noted, however, that women remained underrepresented in parliamentary leadership and senior decision-making positions. While acknowledging positive trends, ICAAD emphasized the need for sustained efforts to achieve substantive gender parity and equality in public institutions and leadership roles.[35]

Children

31. Christian Council International reported high levels of child abuse and neglect, including sexual abuse, particularly affecting children under 15, and highlighted links between domestic violence, family instability and risks to children's physical and psychological integrity. While acknowledging the existing legal and institutional framework, it reported operational and capacity challenges and recommended strengthening child-protection institutions and family support programmes.[36]

32. Quantum Foundation reported that more than 90 nationals Trinidad and Tobago, including over 50 children, remained arbitrarily detained in conflict zones in Syria and Iraq many since 2019. Those women and children are held without charge, judicial review, or adequate access to education, healthcare, or psychosocial support. It expressed concern that failure to repatriate these individuals violated obligations under the Convention on the Rights of the Child and posed long term security risks. QuFo recommended their immediate repatriation in line with international human rights obligations.[37]

Persons with disabilities

33. ICAAD highlighted that GBV disproportionately affected specific groups, including women with disabilities. It noted the reported higher prevalence of violence that include a lack of respect for personhood, bringing about an increased sense of powerlessness and dependency and insufficient data and targeted services for women and girls with disabilities. They recommended adopting intersectional approaches to GBV prevention and response,

strengthening data collection, and ensuring that prevention, protection and support services addressed the specific vulnerabilities.[38]

Lesbian, gay, bisexual, transgender and intersex persons

34. JS5 noted persistent violence, harassment, and discrimination against LGBTIQ+ persons, including physical assaults, robberies, sexual violence, and cyberbullying, often linked to online dating platforms. JS5 raised concerns about under-reporting, inadequate police investigations, victim-blaming narratives, and the absence of a legal framework recognizing hate crimes based on actual or perceived sexual orientation, gender identity, gender expression, and/or sex characteristics ("SOGIESC"). JS5 recommended enacting hate-crime legislation, ensuring prompt and effective investigations of incidents of hate-motivated violence against LGBTIQ+ individuals and accountability, improving data collection and victim redress, and developing public awareness campaigns.[39]

35. ICAAD reported that LGBTQ+ persons faced heightened vulnerability to violence and discrimination, noting the re-criminalization of same-sex intimacy, the lack of comprehensive legal protections, and the absence of recognition of same-sex marriage or gender legal recognition. It acknowledged limited protective measures under domestic violence legislation but emphasized that overall legal frameworks remained insufficient. ICAAD recommended decriminalizing same-sex relations and adopting comprehensive anti-discrimination legislation to protect LGBTQ+ individuals from discrimination and violence in legal, medical and social contexts.[40] Christian Council International recalled that the Constitution of Trinidad and Tobago recognize the family as the cornerstone of society, while individuals who identify as lesbian, gay, bisexual, or transgender should not be subjected to violence, harassment, or arbitrary discrimination, recommending continued protection from violence.[41]

36. Humanists of Trinidad & Tobago reported concerns regarding the criminalization of consensual same-sex conduct and the absence of legal recognition of same-sex marriage or unions in Trinidad and Tobago, noting that these legal restrictions affected the equal enjoyment of rights by lesbian, gay, bisexual and transgender persons and contributed to stigma and exclusion in public life. It recommended decriminalizing consensual same-sex conduct and legalizing same-sex marriage to ensure equality before the law and non-discrimination on the basis of sexual orientation.[42]

Migrants, refugees and asylum-seekers

37. JS2, JS3 and JS4 reported that Trinidad and Tobago continued to face significant structural challenges in ensuring the protection of the human rights of migrants, asylum seekers, and refugees, particularly due to the absence of a comprehensive domestic legal framework. They noted that migrants, asylum seekers, and refugees are all treated under ordinary immigration law facing heightened risks of criminalization, prolonged detention and deportation and refoulement, with limited formal procedures for registering asylum claims, identifying persons in need of international protection, or ensuring access to judicial review, leaving them without viable long-term pathways to residency or citizenship. Non-nationals entering irregularly may be prosecuted, detained in immigration centres, prisons, police stations or temporary facilities without clear time limits or minimum standards, and remain at risk of deportation despite temporary regularization and work access offered to some undocumented migrants under the 2026 Migrant Registration Framework.[43]

38. JS1 reported that Trinidad and Tobago might incur international responsibility for failure to protect migrant workers under its jurisdiction where cooperation schemes operated in a context of widely documented human rights concerns. It stressed the duty of the host State to conduct labour inspections, prevent exploitation and trafficking, and ensure that contractual or administrative arrangements did not undermine international human rights and labour standards.[44] JS1 referred to findings by International and regional organizations among others concerning third-country medical missions worldwide. It noted that they identified recurrent patterns of exploitation, including salary withholding, excessive working hours, surveillance, and restrictions on movement, which it considered relevant for assessing the situation in Trinidad and Tobago.[45] JS1 expressed concern that medical mission healthcare workers could face serious protection risks in the event of automatic or collective

return to their country of origin. It warned that forced returns could expose individuals to reprisals and other human rights violations and urged the application of the principle of non-refoulement, access to asylum or other forms of international protection, and regularization of residence and work status for those wishing to remain.[46]

39. JS2 also noted that the Act prohibits free movement to and from Trinidad and Tobago by persons with disabilities and lesbian, gay, bisexual, transgender, and intersex persons.[47] JS3 highlighted serious protection and accountability gaps affecting detained migrants, refugees and asylum seekers, including children, survivors of gender-based violence, elderly persons, persons with medical conditions and victims of trafficking. While courts have documented harsh and unlawful detention conditions and lacks independent detention monitoring.[48] JS2, JS3 and JS4 recommended adopting legislative action to implement international human rights standards for immigrants and asylum-seekers, consistent with the 1951 Refugee Convention safeguards against refoulement; end prolonged detention of migrants; alternatives to detention; access to justice; reducing delays in judicial processes and interpretation, and firewalls between immigration enforcement and protection service and urgently improve detention conditions and guarantee access to legal representatives.[49] JS3 recommended that all persons seeking asylum have unhindered access to asylum procedures and appropriate reception systems, cease deportations and provide humane border reception; implementing alternatives to detention, decriminalizing irregular entry and stay, and ending the use of police cells and temporary facilities for immigration detention.[50]

40. Quantum Foundation reported concerns regarding the treatment of migrants and refugees, particularly Venezuelan nationals. It cited allegations of unlawful refoulement, collective expulsions, coercive migration practices and judicial delays affecting access to asylum and remedies. It further noted that fear of deportation discouraged migrants from reporting crimes, resulting in denial of effective protection. QuFo recommended aligning migration and asylum policies with international obligations and ensuring access to justice and protection for migrants and refugees.[51]

41. JS4 highlighted particular barriers faced by migrant women and survivors of gender-based violence and trafficking and recommended improving access to education for migrant children.[52]

Notes

[1] A/HRC/49/16 and A/HRC/49/2.

[2] The stakeholders listed below have contributed information for this summary; the full texts of all original submissions are available at: www.ohchr.org

Civil society

Individual submissions:

CCI	Christian Council International, Bodegraven (Netherlands);
CGNK	Center for Global Nonkilling, Grand-Saconnex (Switzerland);
ECLJ	European Centre for Law and Justice, The, Strasbourg (France);
HTT	Humanists of Trinidad & Tobago, Diego Martin (Trinidad and Tobago);
ICAAD	International Center for Advocates Against Discrimination (ICAAD), Chappaqua, New York (United States of America);
JAI	Just Atonement Inc., New York (United States of America);
QuFo	Quantum Foundation, Port of Spain (Trinidad and Tobago).

Joint submissions:

JS1	**Joint submission 1 submitted by:** Cuba Archive, North Miami (United States of America); Free Society Project / Cuba Archive Asociación Sindical Independiente de Cuba Cubalex Grupo de Monitoreo Independiente de El SalvadorInstituto Cubano por la Libertad de Expresión y Prensa Observatorio Cubano de Derechos Humanos (OCDH) Raíces de Esperanza en España;
JS2	**Joint submission 2 submitted by:** World Coalition Against the Death Penalty, Montreuil (France); The Advocates for Human Rights;

JS3	**Joint submission 3 submitted by:** Global Detention Project, Geneva (Switzerland); Caribbean Centre for Human Rights (CCHR), Trinidad and Tobago;
JS4	**Joint submission 4 submitted by:** CEDAW Committee of Trinidad and Tobago, Port of Spain (Trinidad and Tobago); - The Network of NGOs of Trinidad and Tobago for the Advancement of Women- La Casita Cultural Centre, Arima, Trinidad and Tobago;
JS5	**Joint submission 5 submitted by:** Advocates for Human Rights, Minneapolis (United States of America); The Advocates for Human Rights; Jason Jones People's Foundation, (JJPF), Caribbean;
JS6	**Joint submission 6 submitted by:** Advocates for Human Rights, Minneapolis (United States of America); The Advocates for Human Rights; Jason Jones People's Foundation, Trinidad and Tobago.

[3] JS2, paras. 5–12; 31.
[4] JAI, para. 24.
[5] JS4, paras. 4.2.3–4.
[6] QuFo, paras. 2 and 10 (29), JS4, paras. 4.1 and 4.1.1 and JS5, paras. 2, 23–25 and 30.
[7] JS4, para. 4.1.1.
[8] JS5, paras. 19–21, and 30.
[9] QuFo, paras.3 and 10.
[10] QuFo, paras. 5, 7, 9 and 10 (30).
[11] JS5, paras. 5-16 and 30.
[12] JS2, paras. 5-12, 24–25 and 31.
[13] JS2, paras. 13–19; 31.
[14] Center for Global Nonkilling, pages, 3–5.
[15] JS4, paras. 4.2.1–2 and 4.
[16] HTT, paras. 4.1, 4.2, 4.5, 4.6.1, 9–10, 12–19, and 21.
[17] ICAAD, paras. 6 and 8-33 (g).
[18] European Centre for Law and Justice (ECLJ), paras. 10–17.
[19] JS1, paras. 1-7–13; 45–46; 49–51.
[20] JS1, paras. 32–39; 59.
[21] JS1, paras. 14–18; 54; 57; 59.
[22] JS1, paras. 40–41; 45; 53; 59.
[23] JS5, paras. 3, 26–28 and 30.
[24] CCI, paras.3–11.
[25] CCI, paras.16–25.
[26] JAI, paras.2–4.
[27] JAI, paras. 14-24.
[28] JS6, paras. III 1–7 and IV.
[29] JS6, paras. III 1–7 and IV.
[30] JS6, paras. III 1–7 and IV.
[31] JS2, paras. 20–22.
[32] ICAAD, paras. 3.1, 4–5, and 8.
[33] JS2, paras. 23 and 25.
[34] JS2, para. 31.
[35] ICAAD, para. 5.
[36] CCI, paras.12–15.
[37] QuFo, paras. 8 and 10 (31).
[38] ICAAD, paras.7.4.
[39] JS5, paras. 24 and 30.
[40] ICAAD, paras.7.3 and 8 (e).
[41] CCI, paras.26-34.
[42] HTT, paras. 4.2, 4.3, 11 and 21.3.
[43] JS2, paras, 26–30, JS3, para. 4 (a, b and c) and 6.1 and JS4, paras. 5 and 5.1.a.
[44] JS1, paras. 42–44; 59.
[45] JS1, paras. 20–31.
[46] JS1, paras. 47–48; 54–56.
[47] JS2, paras. 26–30 and 31.
[48] JS3, paras. 4.a and b.
[49] JS2, para. 31, JS3, para. 6.1 and JS4, paras. 86–114; 94–114.
[50] JS3, para. 6.1.

[51] QuFo, paras. 4.1 and 10 (28).
[52] JS4, paras. 5 and 5.1.